

Kamlesh Kumar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 29 July 2021 · WRIT - C No. 17624 of 2021 · WRIT - C No. 17624 of 2021 · **Writ disposed; bill correction remitted to 6.5(b)(ii) on deposit**

HEADNOTE

A writ challenging a Rs 7,41,602 electricity demand was disposed of by remitting the consumer's pending bill-correction objection to clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005. No permanent disconnection had been sought or made, so liability for the still-active connection remained; the dispute was as to quantification. On compliance with clause 6.5(b)(ii) and deposit of Rs 2,50,000 within one month, the licensee was to decide the correction request within two weeks. Coercive action was stayed for six weeks or until disposal of the objection, whichever was earlier.

FACTUAL SUMMARY

The petitioner challenged a 22 October 2020 notice demanding Rs 7,41,602 as electricity charges. He asserted that the connection had been discontinued in 2013; the licensee asserted use until 2020. It was not in dispute that no permanent disconnection had been sought or made. The petitioner had already filed an objection dated 24 May 2021 seeking correction of the bill and payment by instalments. Counsel for the petitioner, the State, and the licensee were heard.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)(ii)

bill correction of a disputed demand

HOLDING

A prayer to correct a disputed electricity bill is referable to clause 6.5; the writ court will not quantify the demand. On compliance with clause 6.5(b)(ii) and deposit of the directed sum, the licensee is to pass orders on the pending correction objection. Where no permanent disconnection has been sought or made, liability for the still-active connection remains, the live dispute being quantification. ¶ 1

PRINCIPLE TAGS

disputed-assessment-relegated-to-6.5(b)(ii) The Court would not decide the Rs 7,41,602 quantum in writ; it directed clause 6.5(b)(ii) compliance and a Rs 2,50,000 deposit, after which the licensee was to pass orders on the pending correction objection. ¶ 1

bill-correction-clause-6.5 The petitioner's prayer (i) for correction of the bill was treated as referable to clause 6.5 of the Supply Code, 2005. ¶ 1

clause-6.5-alternate-remedy-to-writ The writ was disposed of by remitting the billing dispute to the clause 6.5 process rather than granting or refusing relief on the merits of the demand. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — QUANTIFICATION OF THE RS 7,41,602 DEMAND AND WHETHER THE CONNECTION WAS USED AFTER 2013

Left to the clause 6.5(b)(ii) process on the pending objection. ¶ 1

NOT DECIDED — PRAYER FOR PAYMENT OF THE DEMAND BY INSTALMENTS

Only the bill-correction prayer was treated as referable to clause 6.5. ¶ 1

